

By requesting Wi-SUN IDevIDs — by opening an account, placing a purchase order or submitting a Subordinate CA Naming Application — you (the "Subscriber" or "Manufacturer") accept the terms and conditions of this Agreement and are bound by them from the date of that request. This Agreement is the "Wi-SUN Subscriber Agreement" referred to in the OISTE Wi-SUN CP/CPS.

This Agreement is concluded between SealSQ SAS, ZA Bachasson, Arterparc Bat A – 13590 Meyreuil, France, owner of the SealSQ Wi-SUN Root CA G1 and a WiSeKey Holding company, operating the Wi-SUN hierarchy under the OISTE/WiSeKey Global Trust Model and together referred to as "SealSQ" or "we", and the Subscriber ("you"). SealSQ is a third-party Certification Authority approved by the Wi-SUN Alliance; the trust model, policies and practices are regulated by the OISTE Foundation through its Policy Approval Authority (CP/CPS Appendix B).

1 Definitions. Capitalised terms have the meaning given in the CP/CPS. In addition:

CP/CPS	The OISTE Wi-SUN Certificate Policy and Certification Practice Statement, current version, published at https://github.com/OISTE/repository and https://wisekey.com/repository .
Wi-SUN Requirements	The requirements published by the Wi-SUN Alliance and formally adopted by the PAA in CP/CPS Appendix D — at present sections 6.5.1, 6.5.1.1 and 6.5.3.2.1.3 of the Wi-SUN FAN Technical Profile Specification 1.1v06. They prevail over the CP/CPS and over this Agreement in case of discrepancy (CP/CPS 2.2.1).
IDeVID	Initial Device Identifier (IEEE 802.1AR): the certificate installed in a Wi-SUN FAN device at manufacture, which never expires and cannot be revoked (CP/CPS 4.9, 6.3.2).
Subordinate CA	A Manufacturer CA (MCA) or Manufacturer Issuing CA (MICA) beneath the Root CA, operated by SealSQ on your behalf or by you as a technically constrained CA (CP/CPS 7.1).
hardwareModuleName	The critical subjectAltName otherName that identifies a device: hwType, an OID beneath your IANA Private Enterprise Number (PEN), and hwSerialNum, the device serial number (CP/CPS 7.1.4).
POWM	Proof of Wi-SUN Membership, issued by Wi-SUN Alliance member services and sent by the Alliance to SealSQ directly (CP/CPS 3.2.2).
Certificate Problem Report	A report of suspected key compromise, misuse, mis-issuance or other problem affecting a certificate, submitted under CP/CPS 4.9.3.
Compromise notice / Retirement notice	The notices SealSQ publishes in the OWGTM repository under CP/CPS 4.9.1 in place of revocation, on which network operators act.
INeS	The SealSQ certificate management platform through which IDevIDs are requested, issued and managed.

2 Scope. This Agreement regulates the provision of Wi-SUN certification services by SealSQ to you as Subscriber of Wi-SUN IDevIDs for the devices you manufacture and, where applicable, as owner of a Wi-SUN Subordinate CA, and your use of those services. Test IDevIDs and LDevIDs are outside its scope (CP/CPS 1.4.2).

3 Object and order of precedence. The certification services are provided in accordance with the CP/CPS and with the Wi-SUN Requirements. In case of discrepancy the Wi-SUN Requirements prevail over the CP/CPS, and the CP/CPS prevails over this Agreement, except for the commercial terms (fees, liability caps, termination), which are governed by this Agreement and your service agreement.

4 SealSQ warranty. In providing its certification services SealSQ complies with the obligations of CP/CPS section 9.6.1 and issues every certificate in conformity with the profile of CP/CPS section 7.1 and the Wi-SUN Requirements. Upon your acceptance of a certificate SealSQ warrants that it was so issued and that your identity, membership and PEN entitlement were verified as stated in CP/CPS section 3.2. SealSQ does not warrant, and cannot provide, revocation of an IDevID or of any certificate in its chain. The Wi-SUN Alliance approves SealSQ as a Certification Authority but does not audit it and gives no warranty in respect of its services (CP/CPS 2.2.1, 9.7).

5 Certification services delegated to you. Through the INeS platform SealSQ delegates to you the following functions, which you perform as a Registration Authority within the meaning of CP/CPS section 1.3.2 and under the controls of CP/CPS section 5:

- the submission of IDevID enrolment requests from a production system authenticated to the issuing CA and constrained to your PEN arc (CP/CPS 3.2.3.1);
- the assignment and verification of the hwType and hwSerialNum values placed in each IDevID, taken from your production record;
- the generation of device key pairs in, or their controlled injection into, protected hardware key storage, and the installation of the IDevID, its private key and the chain bundle into the device at manufacture (CP/CPS 4.4.1, 6.2.7, 6.4.1);
- the retention of the production and enrolment records that link each IDevID to a physical device, for the period of CP/CPS section 5.5.2.

Where you operate a Subordinate CA yourself, you operate a technically constrained Certification Authority under CP/CPS sections 3.2.6, 7.1.5 and 8.4: it is configured to issue only beneath your PEN arc (MICA) or only to your own MICAs (MCA), it is admitted only after your initial self-assessment is accepted by the PAA and the OWGTM accreditation assessment is completed, and the constraint is functionally tested at every assessment. Its key may be used to issue for at most 10 years (CP/CPS 6.3.2). You may not further delegate these functions without SealSQ's prior written approval.

6 Subscriber acknowledgements. Upon accepting this Agreement you acknowledge that:

- you have read the CP/CPS and the Wi-SUN Requirements applicable to IDevIDs and Subordinate CAs, and understand the nature of the services, the use, security precautions and functionalities of certificates, cryptographic keys and the INeS platform;
- you are, and must remain, a member of the Wi-SUN Alliance holding a current POWM; SealSQ validates the POWM it receives from the Alliance, re-verifies your identity, membership and PEN entitlement at least every 24 months, and you will notify SealSQ without delay if your membership lapses (CP/CPS 3.2.2.1);
- the warranties and the limitations on liability and damages set out in the CP/CPS and in clause 10 of this Agreement apply;
- SealSQ may, at its sole discretion, decline to process or issue a certificate (CP/CPS 4.2.2);
- Wi-SUN IDevIDs are not published; the Root CA and Subordinate CA certificates and the chain bundles are published in the OWGTM repository, together with any compromise or retirement notices (CP/CPS 2.1, 2.3);
- key escrow is not permitted (CP/CPS 4.12), suspension is not supported (CP/CPS 4.9.13), and renewal and re-key do not apply to IDevIDs (CP/CPS 4.6, 4.7);
- IDevIDs and the CA certificates in their chain never expire and CANNOT BE REVOKED. Exclusion of a device from a network is performed by the network operator through the access-control mechanisms of the Wi-SUN Requirements, not by SealSQ (CP/CPS 4.9). On the events below SealSQ will instead cease issuance for the affected Manufacturer, product model or device population and, where the event casts doubt on issued certificates, notify the Wi-SUN Alliance and known network operators and publish a compromise notice within the deadlines of CP/CPS 4.9.5:
 - you request in writing that issuance cease, or your Wi-SUN membership or PEN entitlement lapses (cessation and record only, CP/CPS 4.9.1.1 Group 1);
 - the private key of an issued IDevID, or of a population of them, has been compromised, or a method exists that can easily compute it or the key-generation method was flawed;
 - the original certificate request was not authorised and authorisation is not retroactively granted;
 - the validation of your identity, of your PEN entitlement or of any device identifier in a certificate should not be relied upon;
 - a certificate has been misused, or you have violated a material obligation of this Agreement;
 - information in an issued certificate is inaccurate, or the certificate was not issued in accordance with the CP/CPS (CP/CPS 4.9.1.1 Group 2).

7 Your obligations and warranties. Upon applying for certificates you agree to provide accurate and complete information, to obtain your POWM from the Alliance, and to review each issued certificate before installing it, since it cannot be corrected afterwards (CP/CPS 4.4.1). Because an IDevID can neither expire nor be revoked, you warrant, in line with CP/CPS section 9.6.3, that:

- all information you supply and all identifiers you place in certificates are true and valid; each hwSerialNum is unique within its hwType and identifies a single physical device; each hwType lies beneath a PEN to which you are entitled, and you will notify SealSQ immediately if that entitlement ceases;
- the private key of each device is generated within, or injected into, protected hardware key storage that prevents export of the key in plaintext, the device is hardened so that the key cannot be extracted through the interfaces it exposes, and no shared or default activation secret is used across devices (CP/CPS 6.2.7, 6.4.1);

- the manufacturing process in which keys and certificates are installed is physically and logically secured against the injection of keys or identifiers into unauthorised devices, and any copy of an injected key held outside the device is destroyed once injection is confirmed;
- you will submit a Certificate Problem Report under CP/CPS 4.9.3 (INeS portal or cps@wisekey.com) without delay on becoming aware of a key compromise, a duplicated identifier or a mis-issuance, and will demonstrate key compromise by one of the methods of CP/CPS 4.9.12;
- you will verify, before deploying a device population, that your own equipment and any Authentication Server you control accept a notAfter value of 99991231235959Z and a client certificate with an empty subject and a critical subjectAltName;
- you understand and accept that SealSQ cannot revoke an issued IDevID, that exclusion of a device from a network is the responsibility of the network operator, and that the practical remedy for a compromised device population is its replacement;
- you will use the certificates solely for Field Area Network access authentication and node-to-node pairwise authentication of your own Wi-SUN products, in accordance with the CP/CPS and the Wi-SUN Requirements;
- where you operate a Subordinate CA, you will keep its key in a cryptographic module meeting CP/CPS 6.2.1, maintain the configuration constraint of CP/CPS 7.1.5, submit the initial and annual self-assessments of CP/CPS 8.1 and grant the access required for the assessments of CP/CPS 8.4;
- you will pay the fees for the certification services in accordance with your service agreement and purchase orders.

8 Certificate acceptance. In accordance with CP/CPS section 4.4.1, you accept an IDevID when you install the certificate, its private key and the chain bundle into the device during manufacture; you accept a Subordinate CA certificate when your representative acknowledges its receipt and verifies that the key fingerprint matches the request, or installs it in the CA system. Acceptance of this Agreement occurs in electronic form when you open your account or submit your first request.

9 Validity period and fees. IDevIDs and Subordinate CA certificates in the Wi-SUN hierarchy carry notAfter 9999-12-31 23:59:59 UTC and have no scheduled expiration (CP/CPS 6.3.2). The commercial sequence fixed by the Wi-SUN programme precedes any issuance: POWM, account and service agreement, purchase order, invoice and payment (CP/CPS 9.1). The operation of your Subordinate CA on INeS and the issuance of IDevIDs are subject to payment of the fees in your service agreement and purchase orders; the refund policy is the one stated there or, failing that, in SealSQ's general terms and conditions (CP/CPS 9.1.5).

10 Liability. The disclaimers and limitations of liability of CP/CPS sections 9.7 and 9.8 apply to all claims arising in relation to certificates and certification services provided by SealSQ. If SealSQ breaches the warranty of clause 4 and you are in compliance with this Agreement, SealSQ's liability is capped, per class of certificate, at the amounts below, in Euros:

Certificate class	Maximum liability per certificate (EUR)	Total aggregate liability per certificate (EUR)
Subordinate CA certificate (MCA or MICA)	10,000	500,000
Wi-SUN IDevID	100	1,000

Whereas:

- **"Maximum liability per certificate"** is the maximum aggregate liability per year on a single certificate towards a single relying party.
- **"Total aggregate liability per certificate"** is the maximum aggregate liability per year on a single certificate towards all end users, relying parties and any other entities affected by that certificate.
- **"Global liability"** is the aggregate liability limit of the OWGTM towards all end users, relying parties and any other entities that are not Subordinate PKI Entities in respect of all certificates issued under the Root CA, which under CP/CPS section 9.8 is EUR 5,000,000 in total and EUR 500,000 per year. Because the certificates neither expire nor can be revoked, the period over which claims may arise is not bounded by a certificate validity period. SealSQ administers claims on a first-come, first-served basis. You may make only one warranty claim per transaction regardless of how many SealSQ products or services you relied on. Once the applicable cap is reached, you release SealSQ from any liability for remaining unreimbursed amounts.

These limitations apply to any liability whether based in contract, tort (including negligence) or any other theory, and to any direct, indirect, special, punitive, exemplary, consequential, reliance or incidental damages. The OISTE Foundation delegates this liability to SealSQ as lead operator, which covers it through an Errors and Omissions insurance (CP/CPS sections 9.2.1 and 9.8).

11 Data protection and privacy. SealSQ acts as data controller and you, when performing the functions of clause 5, as data processor or joint controller (CP/CPS 9.4). You consent to the SealSQ Privacy Policy. No personal data is placed in IDevIDs or CA certificates; the personal data processed is that of your contacts and representatives, which is processed in compliance with the GDPR and the data-protection legislation applicable to you. You authorise SealSQ to disclose information relevant to any judicial or administrative proceeding concerning the reliability or legal validity of a certificate (CP/CPS 9.4.6), and to publish compromise and retirement notices identifying affected certificate populations.

12 Intellectual property. The certificates, the object identifiers and the CP/CPS are owned by the OISTE Foundation, save that the Root CA certificate and its key belong to SEALSQ; your private and public keys are your property (CP/CPS 9.5, Appendix B). Any trademark included in a certificate is under your responsibility.

13 Indemnification. You will indemnify and hold harmless WISEKey, SEALSQ, the OISTE Foundation and their respective directors, officers, employees, agents and affiliates from any liability arising out of your use of the certificates for other than their intended use, out of IDevIDs issued on the basis of inaccurate identifiers or from an insecure manufacturing process, out of a Subordinate CA you operate in breach of the CP/CPS or the Wi-SUN Requirements, or out of any material breach of your obligations under this Agreement.

14 Electronic contracting and notices. You agree to the formation and conclusion of contracts and to the delivery of notices and communications by electronic means, including the acceptance of this Agreement and termination notices, and confirm that you have the capability and equipment to do so. Notices to you are sent to the e-mail address in your registration information (CP/CPS 9.11). SealSQ may amend this Agreement and the CP/CPS following CP/CPS section 9.12; amendments are published in the OWGTM repository and major changes are notified to you.

15 Term and termination. This Agreement takes effect on your first request and remains in force while any certificate issued to you under it is in service. Either party may terminate it at any time. If you terminate without cause, no fees are refunded; if SealSQ terminates without cause, it refunds you in accordance with its refund policy; if SealSQ terminates with cause, no refund is due. On termination SealSQ ceases issuance for you and, where you operate a Subordinate CA, that CA is retired under CP/CPS 4.9.1.2 by notice. Certificates already installed in devices remain cryptographically valid, and your obligations concerning device key protection, Certificate Problem Reports, confidentiality and personal data survive (CP/CPS 9.10.3).

16 Assignment. You may not assign any right or obligation under this Agreement without SealSQ's written consent (CP/CPS 9.16.2).

17 Severability. If any provision of this Agreement is held invalid by a court of competent jurisdiction, the remaining provisions remain in force, and the invalid provision is replaced by a valid one that most closely reflects its purpose (CP/CPS 9.16.3).

18 Applicable law and jurisdiction. This Agreement is governed by the laws of Switzerland, and the parties submit to the exclusive jurisdiction of the courts of Geneva (CP/CPS 9.13 and 9.14).

ACCEPTANCE

Acceptance is given electronically when you open your account or submit your first request. Where a signed copy is required, complete the block below.

Subscriber (legal name)	<i>Organisation</i>	Signature
IANA Private Enterprise Number	<i>e.g. 45605</i>	
Authorised representative	<i>Name and position</i>	
Date	<i>Select a date</i>	

This Agreement is issued by

SealSQ — approved Wi-SUN third-party Certification Authority, operating the SealSQ Wi-SUN Root CA G1

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